IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **27.03.2026** THROUGH VIDEO CONFERENCE

CORAM: HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
HON'BLE SHRI VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

Application No	:	
Petition No	:	CA(CAA)/81(CHE)2025
Name of Petitioner & Name of Respondent	:	Semac Construction Technologies India Pvt. Ltd
Section	:	230-232 of CA, 2013

ORDER

CA(CAA)/81(CHE)2025

Present: Mr. T.K.Bhaskar along with Mr. Mayan H Jain, Ld. Counsel for the Applicant.

This is a first motion application.

Ld. Counsel for the Applicant submits that the Transferor Company is the wholly owned subsidiary of the Transferee Company. The Transferee Company is a solvent company as can be seen from the balance sheet at page 304 of the application, where the assets have been shown as Rs.190.71 crores, whereas the liability has been shown as Rs.64.91 crores. He submits that there is a bank balance in the form of Fixed Deposit for an amount of Rs.48.75 crores. He also referred to the Chartered Accountant report at page 376-377 of the application and stated that there would hardly be any impact post amalgamation. He also submits that Section 9 petition against the Transferee Company has not been admitted yet. He also referred the case laws filed vide SR.No. 560 dated 10.02.2026.

Arguments heard.

Order reserved.

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[VENKATARAMAN SUBRAMANIAM]
MEMBER (TECHNICAL)

-sd-
[SANJIV JAIN]
MEMBER (JUDICIAL)

MS
Date: 27.03.2026